

~ Date: / /2024 Kalaburagim 4 Receiving Clerk`

- 4 Annexure-A: Copy of the report/complaint :

. said report/complaint ` |  
\_ Annexure-C: Copy of the request letter dated ■  
Annexure-E: Copy of the proceedings dated ' ■  
■ Annexure-F : Copy of the website extract of  
■■■.  
30 [■■■ ae ■  
` ■. 0806: Kalaburagi Advocate for Petitioner  
Date: .1.2025 (SHIVAYOGIMATH ASSOCIATES) '

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, / ■ ■  
| ■  
| IN THE HIGH COURT OF KARNATAKA BENCH AT ;  
| ; . : KALABURAGI . :  
; : W.P.No. 12025  
\_ - Between: -  
. Smt.Arathi. : Petitioner 14.4.6  
And:  
. The State and others. : Respondents ;  
. SYNOPSIS  
; SL. Date , Events |  
=  
1 ©} 31.1.2023 | The husband of the petitioner  
Sri.Bhagavanthraya, S/o Basavanthraya :  
. had availed a loan of Rs.10,00,000/- from |  
, HDFC, Bank, Kalaburagi upon his land, |  
when he was unable to repay he committed | :  
suicide between the night of 31.1.2023 and |" .  
. 1.2.2023 early morning at 5.00 am. The| we? |  
■ ■■■ of the petitioner immediately |  
. has reported the same at the jurisdictional ,  
■■ ■ " | police station at Nelogi Police Station. — \_]. ree  
; 2 1.2.2023 The jurisdictional Nelogi Police Station has |  
: accordingly registered the said complaint .  
. ; . under Section 174 of Cr.P.C. in  
■. U.D.R.No.4/2023,  
3 17.2.2023 |The father-in-law of the petitioner  
: approached the Respondent No.6 and  
: Oe requested to grant compensation to his  
| :

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1 . 5  
■ ` ■■? ~ 2 ~ .  
; daughter-in-law and -submitted. requisite ;

i documents. ■ ■ [■■■■ 4.

4 5.6.2023 The jurisdictional Nelogi police have filed} ` .

; Final Report-and forwarded the same to the

| Assistant Director of Agriculture, Jewargi;

who requested the Bank Manager, HDFC,

5 'City Corporation; Main Road, Kalaburagi, 10 | .

furnish the details. of the said loan availed,

by the deceased Sri.Bhagavantharaya, |

. along with the opinion. `

5 | 29.2.2024 | & Committee was constituted headed .by

| | i - | 0176 Assistant Commissioner, Kalaburagi

| | . and after collecting the details of the loan j

14 | availed by the: husband of the petitioner |

| | the P.M. report from the Medical Officer,

| | 1 Nelogi and the report from the nega .

" | Forensic Séience Laboratory, oh oe ;

i confirmed that it is case of death due to

| consumption of poison and after |

, verification, resolved to grant | \_

. . | Rs.5,00,000/- (Rupees Five Lakhs Only)

| towards' the compensation to the

` petitioner. ` ` ■ ,

| ■9.8.2024 | When the petitioner. requested to grant the

| 6 compensation as per the decision of the

| Committee, Respondent No.6 has handed ;

■ a over the website extract of Direct Benefit .

Transfer Platform of the Government dated :

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° ■ 3 ■

| ae wherein in status column itis stated that ,

` BRIEF FACTS OF THE CASE

1 The husband of 076 ■■■0■■■■■ had availed a loan of

Rs.10,00,000/-from HDFC, Bank, Kalaburagi, unable to repay due

to crop failure and improper rainfall, he committed suicide

between 10.pm of 33.3.2023 and 5.am., of 1.2.2023. The father-

: ; . in-law of the petitioner reported the same before jurisdictional

; [1610017 00106 Station. Thereafter requested Respondent No.6 to

grant compensation. The Committee was formed headed by :

Respondent No.4, after vérification of documents and information

from HDFC, Bank, P.M. report and Report from Forensic :

Laboratory, resolved to grant ' Rs.5,00,000/- towards ' . ,

compensation. When. the' petitioner ` requested to grant the

. compensation as per the decision of the Committee, Respondent .

No.6 nas®\* handed over the website extract of Direct Benefit ■ ■■

oo Transfer Platform of the Government dated wherein in status ; |

`... 0010/70 it is stated that "Incorrect Payment Period". Hence this writ

° petition. : . ;  
; Place: Kalaburagi Advocate for Petitioner  
Date: .1.2025 ; : (SHIVAYOGIMATH ASSOCIATES)  
| '

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| ,  
; ` IN THE HIGH: COURT OF KARNATAKA BENCH AT :. -  
` 1 ' . KALABURAGI . . ' 1  
; (Original Jurisdiction) - ;  
W.P.No. , 12025  
~ Between:  
Smt.Arathi, : r  
W/o Bhagavanthraya, : ,  
` Aged about 27 years,  
. R/o Kuranalli, Post : Mandewal,  
- Tq: Jewargi,  
Kalaburagi 585310. : Petitioner

■ And: —

1. The State of Karnataka,  
Rep. by its Secretary,  
Revenue. Department, : ;  
M.S, Building, Bengaluru-01.:  
4. The State of Karnataka,  
Rep by its Secretary, 4  
Agriculture Department, .  
M.S. Building, Bengaluru-01.. a  
. 3. The Deputy Commissioner, —  
(81800/7801, Dist: Kalaburagi.  
. 4. The Assistant Commissioner and  
, President,. Ha.Ka.A.Samithi, :  
` Kalaburagi, Dist: Kalaburagi. , |  
- 3. The Assistant Director of Agriculture, a  
\_ Jewargi, Dist: Kalaburagi.  
6. The Tahsildar, " `  
Jewargi, Dist: Kalaburagi. . : Respondents

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` MEMORANDUM OF WRIT PETITION UNDER  
. . . ARTICLE 226 AND 227 OF THE CONSTITUTION OF ;  
4 1 INDIA : 7

\_ . The petitioner above named most respectfully. submits as  
: follows: :

1. The husband of the petitioner: Sri. Bhagavanthraya, S/o  
Basavanthraya had availed a loan of Rs.10,00,000/- from HDFC, :

, - Bank, Kalaburagi upon his land bearing Sy.No.41/4 measuring 5 : acres 30 guntas situated at Seemanthara village, Kalaburagi and 4 also the loan-of Rs.2,00,000/- from Private lenders. When he was | unable to repay the said loans and in- between the night of . | 31.1.2023 and 1.2.2023 early morning at 5.00 am, he committed ` suicide, the petitioner came to know at 5.00 am on ■.2.2023. The father-in-law of the petitioner immediately. has reported the . suicide of his son at the Jurisdictional police Station at Nelogi Police . Station on 1.2.2023 at 9.00 am., narrating the same and'affirmed . that nobody is responsible for thé déath of his son. The copy of . ; | the -report/complaint dated ■.2.2023 is produced herewith and - | marked as Annexufe-A, The jurisdictional Nelogi Police Station has accordingly registered the said complaint\_under Section 174 . of Cr.P.C. in U.D.R.No.4/2023. The copy of the registration' of the " said report/complaint is Produced herewith and marked as Annexure-B.

2. \_ It is submitted that due to the death of her husband, the \_ 4 father-in-law of the petitioner approached the Respondent No.6 and narrated the above facts, that his son had availed the loan, : 3 but was unable to repay the same due to no proper rainfall that . "effected his crops and-due-to-failure of crops, hence requested to | . |

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| + "grant compensation to his "daughter-in-law and submitted | : : requisite documents, in his. request letter dated 17.2.2023. The 3. 4 | : copy. of the request letter dated 17.2.2023 is 'produced herewith - : . | and marked as Annexure-C. The said request letter is duly oon received and acknowledged on the same day. . ~

. , 3. It is submitted that upon the cOfnplaint/report of the death , : | . of the husband of the petitioner, the jurisdictional Nelogi police have filed Final Report and forwarded. the same to the Assistant Director. of Agriculture, Jewargi, who upon receipt of the Final : . Report has requested the Bank Manager, HBFC, City Corporation, : , Main Road, Kalaburagi, to furnish the details of the said. loan ` availed, by the deceased Sri.Bhagavantharaya, along with the : ° opinion, in its letter dated 5.6.2023. The copy of the letter dated . 5.6:2023 is produced herewith and marked as Annexure-D. :

5. Tt. is submitted that this being so, \* commits was "constituted headed by the Assistant Commissio r, Kalaburagi in ` respect of farmer's suicide cases, and the proceedings were held ' . "on 29.2.2024, wherein the Bank Manager, HDFC, City Corporation, "Main Road, Kalaburagi has furnished the details of the loan availed. . by the husband of the petitioner on 5.8.2023 and stated that the

outstanding loan amount is Rs.2379708/-. The said Committee  
\_ collected the information of the details of loan, the P.M. report. ;  
: : from the Medical Officer, Nelogi and the report from the Regional — - ,  
Forensic 5016708: Laboratory, Kalaburagi and confirmed that it is  
34 case of death due to consumption of poison and after verification, -  
resolved to grant Rs.5,00,000/- (Rupees Five Lakhs Only) towards  
: : the compensation to the petitioner. The copy of the proceedings ; .  
= | 4 |

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: \_ dated 29.2.2024 is produced herewith and marked as Annexure- oo,  
; - 6, it is submitted that despite the said decision of the  
Committee no action was taken to grant the compensation to the  
'petitioner. After several efforts, the 'petitioner approached  
: . Respondent No.6 and requested to grant the compensation as per  
the decision of the Committee. For that the Respondent No.6 has  
, handed over the website extract of Direct Benefit Transfer Platform  
of the Government dated 19.8.2024 and was shocked to find that '  
| though the amount of Rs.5,00,000/- is sanctioned, but it is stated  
in status column that "Incorrect Payment Period". Due to this the  
, -petitioner is unable to \_avail the said loan sanctioned. The ey oF :  
: the website extract of Direct Benefit Transfer dated 19.8.2024 ig  
; | "produced herewith and marked as Annexure-F.  
7. | petitioner has not filed any other writ or appeal on the  
same cause of action and no such writ or appeal is pending before 4  
' any courts or tribunals, :  
: 8. Being aggrieved by the action of. Respondents in not — - .  
releasing the compensation amount of Rs.5,00,000/- as per the  
decision taken in the Committee on 29.2.2024, which is clear from  
| 'the Direct Benefit Transfer Platform of the Government,. the .  
; ° petitioner having no other alternate and efficacious remedy ,  
available except to approach this Hon'ble Court by invoking its writ |  
jurisdiction under Article 226 and 227 of the Constitution of India, a :  
; ; presents this writ petition on the following among other grounds.

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1113 "01.48 GROUNDS :

° 10. The action of Respondents in not releasing the  
compensation amount of Rs.5,00,000/- 85 per the decision taken  
■4 ~ in the Committee is illegal, improper, arbitrary, in' violation of :  
: Article 14 and 21 of the Constitution of India and not sustainable  
. - in law or facts. '  
' ; 11. 'It is the husband of the petitioner availed loan from HDFC  
Bank, Kalaburagi, but was unable to repay due to crop failure as a  
result of lack of rain and committed suicide. Though the death is |  
affirmed as a case of farmers' suicide in the Committee, the

Respondents are refusing to grant the compensation, the same is in violation of Article 14 and 21 of the Constitution of India. ' .

— ~ 12. It is submitted that- UDR No.4/2023 is registered under we? "é ` Section 174 of Cr.P.C. on 12203 and Respondent No.5 collected . \_ the information from HDFC, Bank, Kalaburagi that the husband of , . the petitioner availed the loan.of Rs.10,00,000/- at the time of his : \_ death, the outstanding loan is Rs.2379708/-, the same was placed / . ; before the Committee. The Committee resolved to pay the : compensation of Rs.5,00,000/- to the petitioner. But the Revenue 7 oo Department: has refused to pay the amount of compensation, - stating that "Incorrect Payment Period", the said reason is ; , ` contrary to the proceedings and object of the Scheme providing 'relief to farmers. . .

~ 13. It is submitted that the Committee after collecting: the ; , . particulars from the HDFC, Bank, Kalaburagi, the P.M. report from

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31 ■■■ ■■■■

2 the Medical Officer, Nelogi and. the Report of Forensic Science ~ ; | ■. Laboratory, 1313007201 ' and confirmed that the © said - ■ | Sri. Bhagavantharaya has committed suicide by consuming poison ; ■ due' to his debts. But the impugned endorsement is issued, by | assigning untenable reasons, the same is not sustainable. ` | ■ 14. Viewed from "any angle the: impugned action of 'the | "respondents in not disbursing the compensation to the petitioner , » due to the suicidal death of her husband is not sustainable. 1...

#### ■ PRAYER

4 Wherefore, for the reasons stated above the petitioner most ; respectfully prays that this Hon'ble Court may kindly be pleased | | to: ; ,

7 8). 15606 a writ or order or direction writ in the | \*é nature of certiorari quashing the. ■■ aa | endorsement dated 19.8.2024 by Respondent No.1, . | . ° ■ °Nploaded in-the Direct Benefit Transfer Platform of the | / - Government, vide Annexuré-F. `

0) Issue a writ or order or direction writ in the uo | ; - nature of Mandamus, directing Respondent No.1, 3, 4 oan | ) and 5 to pay the compensation of Rs.5,00,000/- | ■" (Rupees Five Lakhs Only) as resolved 1■ the ` , ; Proceedings of the Committee dated 29.2.2024, vide ■ ` Annexure-E, .. ' ■ 4

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Lo , 7 : ; c) Pass such any other orders as deemed fit by this - an 1.■ 1. ■.1 Hon'ble Court under the facts and circumstances of the \_ ; Case in the interest. of justice and equity. . :





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2023 ■■■■ ■■■■■■ 10:00 ■■■■■■■■ ■■■■ ■■■■■■ 01-02-2023 ■■■■ ■■■■■■■■ 05,00 ■■■■ ■■■■■■■■

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. Basavantraya Tq Jewaragi, oo ■.4

- Sidagonda Kalaburagi, oo

o : Karnataka-5853 1441 ■

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oR . 6. ■■■■■■; 01-02-2023 -

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Plaintiff/s, ■■■■■■■■5 24 Respondents . 6.0 os.  
- Caveator ; 461 ■■4 Judgement - Debtors/s ■■ 466.  
` Vs . Opponent/s\_ - 4  
IMe\_\_cemnt . (■■ Wo 13/0, ■? ■  
the 0 . 'Nos in the above matter hereby appoint and retain.  
5/57 - era 2 (■ [■■ ■■■■ ■■■■ ■■■■ a 00 ■■■■■■  
to appear act and plead for mé/us in the above matter and to ct/ prosecute and defend the  
same in all  
'interlocutory or miscellaneous proceedings connected with the same or with any decree or  
orders passed .  
therein appeals and or other proceedings arising there from and also in proceedings for  
review of  
: judgement and for leave to appeal to-Supreme Court and to obtain return of any documents  
filed therein or  
receive any money which may be payable to me/us. . - a 1 `  
■■ . a ` ■  
2) I/We hereby authorise-him/her/them on my/our behalf to eater into a compromise in the  
above |  
matter to execute any decree/order therein to appeal from,any detree/order/therein and to  
appeal to act to  
plead in such appeal in any preferred by any other pairty from any "ee feefotertheren `  
1/ further agree that, if 1/We fail to pay the fees agreed upon or to-give due  
instructions at all  
- stages he/she/they is/are at liberty to retire from the case and recover all amounts due  
to him/her/them ;  
and retain all my/our monies till such dues are paid. ■ ■  
"Executed by me/us this 4 ■ Wy day of Jom ■ ■ ■ ■ ■ | (■.■■■.

